

**DEPARTMENT OF THE ARMY
UNITED STATES ARMY GARRISON JAPAN
DIRECTORATE OF PUBLIC WORKS
OPC 705 BOX 3 APO AP 96338-9001**

**PERFORMANCE WORK STATEMENT
TO
REPAIR LIGHTS
AT BLDG 155-7, SAGAMI GENERAL DEPOT (SGD),
U.S. ARMY GARRISON JAPAN**

**(FEWR No. T5-00008-5J)
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SECTION 1

DESCRIPTION OF SERVICES/GENERAL INFORMATION

1.0. DESCRIPTION OF SERVICES. The contractor shall provide all necessary labor, management, tools, equipment, transportation, materials, and any other items or services necessary to repair lights at Bldg.155-7, Sagami General Depot (SGD). The contractor shall perform this repair In Accordance With (IAW) this Performance Work Statement (PWS), commercial standards and practices, and the manufacturer's specifications.

1.1. REPAIR WORK.

1.1.1. General. The contractor shall repair the ceiling lights and emergency lights at Bldg.155-7, SGD. Prior to the commencement of work, the contractor shall review and obtain necessary information including specifications/dimensions of the equipment, physical / electrical conditions of the existing lighting system, and any other conditions essential for the work. The detailed requirements of each equipment are described in the following paragraphs. See Appendix A for the existing lighting system drawings.

1.1.2. Detailed Work Requirements. The contractor shall repair the existing ceiling lights and emergency lights. For convenience, the areas in this building are divided into four areas. See Appendix A for each area. The detailed requirements for each location are as follows:

a. Area A.

The contractor shall repair the existing seventy (70) each (ea) ceiling lights by replacing them with new ones. All lights shall be fixed firmly and with additional secure bolts and wires in case of falling off. The proposed lights are NYM20202-LR9 + NYK00116 (Panasonic Corp., Ltd) or equal item. The illuminance requirements for ceiling lights are as follows:

- Average horizontal illuminance: 300lux or more
- Uniformity (Maximum : Minimum): 3:1 or less

The contractor shall repair twenty-eight (28) ea emergency lights by replacing them with new ones. The new emergency lights shall meet U.S standards, such as UFC, NFPA. The proposed products are HBEM30 (Litetronics Corp., Ltd) or equal item. The existing auto lifters, these panels, wires, and conduits for ceiling lights and emergency lights shall be removed as much as possible. If the replacement of wires and conduits is required as part of this repair work, the contractor shall replace them. They shall be the adequate thickness of contactor of wires given the dropping the voltage off and the weatherproof conduits that are made of stainless or galvanized items. If the contractor determines to provide or replace breakers as part of the repair work, the contractor shall provide or replace them and ensure the new ceiling lights and emergency lights to be used appropriately.

b. Area B.

The contractor shall repair the existing thirty-nine (39) ea ceiling lights by replacing them with new ones. All lights shall be fixed firmly and with additional secure bolts and wires in case of falling off. The proposed products are NYM20202-LR9 + NYK00116 (Panasonic Corp., Ltd) or equal item.

The illuminance requirements for ceiling lights are as follows:

- Average horizontal illuminance: 300lux or more
- Uniformity (Maximum : Minimum): 3:1 or less

The contractor shall repair eight (8) ea emergency lights by replacing them with new ones. The new emergency lights shall meet U.S standards, such as UFC, NFPA. The proposed products are HBEM30 (Litetronics Corp., Ltd) or equal item. The existing auto lifters, these panels, wires, and conduits for ceiling lights and emergency lights shall be removed as much as possible. If the replacement of wires and conduits is required as part of this repair work, the contractor shall replace them. They shall be the adequate thickness of contactor of wires given the dropping the voltage off and the weatherproof conduits that are made of stainless or galvanized items. If the contractor determines to provide or replace breakers as part of the repair work, the contractor shall provide or replace them and ensure the new ceiling lights and emergency lights to be used appropriately.

c. Area C

The contractor shall repair the existing ninety (90) ea ceiling lights by replacing them with new ones. All lights shall be fixed firmly and with additional secure bolts and wires in case of falling off. The proposed products are XFX459KEN-LE9 and FK41534 (Panasonic Corp., Ltd) or equal item.

The illuminance requirements for ceiling lights are as follows:

- Average horizontal illuminance: 300lux or more
- Uniformity (Maximum : Minimum): 3:1 or less

The contractor shall repair twenty-two (22) ea emergency lights by replacing them with new ones. The new emergency lights shall meet U.S standards, such as UFC, NFPA. The proposed products are ELM6L (Lithonia Lighting Corp., Ltd) or equal item. In this area, the contractor shall provide metal conduit wirings from ceiling lights to emergency lights because most of the existing ones are the combination of ceiling lights and emergency lights. Some are separated with ceiling lights and emergency lights. In that case, the contractor may replace them with new ones without providing new wires and conduits. If the replacement of wires and conduits is required as part of this repair work, the contractor shall replace them. They shall be the adequate thickness of contactor of wires given the dropping the voltage off and the weatherproof conduits that are made of stainless or galvanized items. If the contractor determines to provide or replace breakers as part of the repair work, the contractor shall

provide or replace them and ensure the new ceiling lights and emergency lights to be used appropriately.

d. Area D

The contractor shall repair the existing fifty-one (51) ea ceiling lights by replacing them with new ones. All lights shall be fixed firmly and with additional secure bolts and wires in case of falling off. The proposed products are NYM20202-LR9 +NYK00116 (Panasonic Corp., Ltd) or equal item.

The illuminance requirements for ceiling lights are as follows:

- Average horizontal illuminance: 300lux or more
- Uniformity (Maximum : Minimum): 3:1 or less

The contractor shall repair twenty (20) ea emergency lights by replacing them with new ones. The new emergency lights shall meet U.S standards, such as UFC, NFPA. The proposed products are HBEM30 (Litetronics Corp., Ltd) or equal item. The existing auto lifters, these panels, wires, and conduits for ceiling lights and emergency lights shall be removed as much as possible. If the replacement of wires and conduits is required as part of this repair work, the contractor shall replace them. They shall be the adequate thickness of contactor of wires given the dropping the voltage off and the weatherproof conduits that are made of stainless or galvanized items. If the contractor determines to provide or replace breakers as part of the repair work, the contractor shall provide or replace them and ensure the new ceiling lights and emergency lights to be used appropriately.

1.1.3. Test. The contractor shall perform all function test in order to confirm the new lighting system can be operated without any issues after the repair work. The contractor shall also perform the illuminance measurement. If the GR requests the adjustment the angle of lights, the contractor shall follow the instruction.

1.1.4. Disposal. The contractor shall dispose of the removed equipment to off-base IAW the laws of Japan.

1.1.5. Equal items. When the contractor provides “or equal” items, the “or equal” items must be reviewed and approved by the GR prior to award. The descriptive data shall be supported by sufficient information such as catalogs, certificates of compliance, installation/ instruction manuals, operation and maintenance data and any other data published by the manufacturer, to demonstrate conformance to the requirements.

1.2. SUBMITTALS.

1.2.1. Illuminance calculation. The contractor shall submit illuminance calculation results for each location prior to the award.

1.2.2. Work Schedule. The contractor shall ensure that the job site is ready and available for the performance of work. The contractor shall submit an entire schedule in both English and

Japanese to the GR for review and approval 30 days after the award. The contractor shall also submit a detailed working schedule in both English and Japanese to the GR for the review and approval 30 days prior to commencement of the on-site work. If there are uncomfortable events, such as noise, turning the strobes on, the contractor shall specify them in the schedule.

1.2.3. As built documents. The contractor shall submit as-built documents to the GR within 60 calendar days after the on-site work completion date if there are some changes. It is possible to make corrections in red marked letters on the existing drawings. The as-built documents in English shall be submitted in 3 sets of booklet-type and digital forms.

1.2.4. Work Reports. The contractor shall provide work reports, in both English and Japanese, and submitted to the GR within 60 calendar days after the work completion date. Such reports shall be submitted in booklet-type and digital forms, and shall include necessary as built drawings, pictures for step-by-step performance work, catalog cuts/manufacture drawings of the replaced parts, results of tests and manifests.

2.0. GENERAL INFORMATION.

2.1. CONTRACTOR PERSONNEL.

2.1.1. Contract Manager. The contractor shall provide a contract manager who shall be responsible for all requirements in this PWS. The name of this person and an alternate(s) who shall act for the contractor when the manager is absent, shall be designated in writing to the Contracting Officer (KO) and the GR. The contract manager or alternate shall have full authority to act for the contractor on all matters relating to this contract. The contractor shall provide the contract manager's and alternate's names, email addresses, and telephone numbers. The contract manager or alternate should be proficient in English and shall have a good understanding of the requirements pertaining to this contract for interpretation and implementation of directives (written and oral), issued in English by the KO or GR. If the contract manager or alternate do not meet these requirements, the contractor shall provide a translator for them.

2.1.2. Contractor Employees. Contractor personnel shall be easily recognizable as contractor employees. This may be accomplished by wearing distinctive clothing bearing the name of the company or by wearing appropriate badges which contain the contractor's company name and the employee's name.

2.1.2.1. Personnel Qualifications. The contractor shall be responsible for their employees have the following current and valid professional certification for the entire life of this contract; "Electrician License, 2nd Class License (電気工事士 2 種)".

2.1.3. Removal of Contractor's Employees. The contractor shall utilize only experienced, responsible and capable employees in the performance of this contract. The KO may require that the contractor remove any of his/her employees who endanger persons or property, or whose continued employment under this contract is inconsistent with the interests of the U.S. Government.

2.1.4. Other Country Nationals (OCN). The security forces on each base control entry to the base. Under certain circumstances, the OCN might be denied entry. It is the contractor's responsibility to coordinate with security forces at each base when there is a question about particular entry circumstances.

2.1.5. U.S. Government and/or Master Labor Contract Employees. The contractor shall not hire employees of the U.S. Government and/or Government of Japan Master Labor Contract employees in violation of the Procurement Integrity Act. See FAR 3.104. Furthermore, the contractor shall not employ any Department of Defense employee, either military or civilian, unless such person seeks and receives approval in accordance with Department of Defense 5500.7-R, Joint Ethics Regulation.

2.1.6. Military Personnel. The contractor is cautioned that off-duty active military personnel hired under this contract may be subject to permanent change of station (PCS), change in duty hours, or deployment. Military Reservists and National Guard members may be subject to recall to active duty. Abrupt absence of these personnel could adversely affect contractor's ability to perform; however, their absence at any time shall not constitute an excuse for non-performance under this contract.

2.1.7. Roster. The contractor shall provide a complete roster of all personnel (including the contract manager and alternate contract manager) to the GR prior to start of performance. The roster must include all employee names, email addresses, and telephone numbers. The contractor shall maintain a current listing of employees, providing updates as changes occur.

2.2. QUALITY CONTROL. The contractor shall utilize its existing quality control program to ensure the services are performed IAW commonly accepted commercial practices. The contractor shall develop and implement procedures to identify, prevent and ensure non-recurrence of defective services. At a minimum, the contractor shall develop quality control procedures addressing the areas identified in Section 2, Services Summary.

2.3. QUALITY ASSURANCE. The Government will evaluate the contractor's performance IAW the Quality Assurance Surveillance Plan (QASP) by appointing a GR to monitor performance to ensure services are received.

2.4. GOVERNMENT REMEDIES. The KO shall follow FAR 52.212-4, Contract Terms and Conditions-Commercial Products and Commercial Services, for the contractor's failure to perform satisfactory services or failure to correct non-conforming services.

2.5. CONTRACTING OFFICER AUTHORITY. Only the Contracting Officer (KO) has authority to enter into, administer, terminate or modify the terms and conditions herein. Any changes made by persons other than the KO will be considered an unauthorized commitment and subject to ratification actions in accordance with FAR 1.602-3.

2.6. GOVERNMENT REPRESENTATIVE (GR). The contractor shall coordinate all aspects of this project with the GR. Completed work shall be subject to inspection and acceptance by

GR. The GR shall NOT direct or redirect any contractor action(s). This can only be done by the KO.

2.7. AVAILABILITY OF FACILITY.

2.7.1. Hours of Service. The contractor's personnel will perform scheduled work on weekdays, Monday through Friday (exclusive of the U.S. legal and other designated holidays listed below), during normal duty hours, 0800 - 1630 hours unless prior arrangements have been made with the GR.

2.7.2. Legal Federal Holidays in the U.S. and Other Designated Holidays.

Federal Holidays in the U.S.

1 January	New Year's Day
3rd Monday in January	Birthday of Martin Luther King Jr.
3rd Monday in February	Washington's Birthday
Last Monday in May	Memorial Day
19 June*	Juneteenth National Independence Day
4 July*	Independence Day
1st Monday in September	Labor Day
2nd Monday in October	Columbus Day
11 November*	Veterans Day
4th Thursday in November	Thanksgiving Day
25 December*	Christmas Day

Other Designated Holidays

1, 2 & 3 January*	New Year's Days
3rd Monday in July	Marine Day
29, 30 & 31 December*	Year End Days

*If a holiday falls on a Saturday will be observed on the preceding Friday, and a holiday falls on a Sunday will be observed on the following Monday.

2.7.3. Arrangements of the Performance Time. Should the contractor decide to perform any of the required services before or after normal duty hours, the contractor shall request approval prior to performance from the GR and shall do so at no additional cost to the Government.

2.8. SECURITY AND SAFETY REQUIREMENTS.

2.8.1. Installation Base Passes. The U.S. Government will issue all required Installation/Base Passes and Controlled Area Badges to contractor personnel at no cost to the contractor. The contractor shall submit the base pass application documents to the GR 14 calendar days prior to commencement of work. Vehicle insurance certificates are required to obtain Base Passes and must cover the automobile liability insurance in the types and minimum amounts of (a) Bodily Injury - ¥30,000,000 per person per occurrence, in addition to the Japanese Compulsory Insurance (JCI), and (b) Property Damage - ¥3,000,000 per occurrence. The prime contractor

shall be responsible for all passes issued to his/her own or subcontractor's employees under this contract. The contractor shall return all applicable passes upon termination of employment or completion of this contract to the Japanese Pass Section, and a certificate of receipt shall be obtained.

NOTE: Contractor personnel are required to comply with U.S. Army Regulation 190-5 for personnel pass requirements. Contractors are also required to comply with the USAG Japan Regulation 190-13 for vehicle pass requirements. These regulations are available for the selected contractor's review upon personnel and/or vehicle pass issuance.

2.8.1.1. Reserved.

2.8.2. Security Requirements. The contractor shall ensure each employee obtains all the required passes and identification items for access to U.S. Government's installations. These items are issued by the Security Forces Pass and Registration Section. The contractor and employees shall return identification cards to Security Forces within 24 hours of termination or completion of this contract. All other Government identification for terminated employees shall be returned to the KO within 24 hours of termination.

2.8.3. Off Limit Signs. The contractor shall provide warning and/or "OFF LIMITS" signs in both English and Japanese and post them at the entrances of jobsite, and barricades around the jobsite while the equipment and/or systems are being serviced. The contractor shall control all personnel desiring access into jobsite areas when work is in progress.

2.8.4. Photography Permission. The contractor shall obtain GR approval prior to commencing any photography.

2.8.5. Responsibility for Damages. Any damages caused to U.S. Government property during the course of performing this contract shall be restored, replaced and/or repaired to its original condition at no additional cost to the U.S. Government.

2.8.6. Reports of Damages, Destruction, Injury or Death.

2.8.6.1. The contractor shall report all incidents of damage or destruction to property, or personal injury or death to any person, arising out of and during the performance of this contract. The term "property" includes equipment, freight, or property of any type, whether Government owned or not. The term "contractor" includes the contractor, its agents, servants or employees.

2.8.6.2. The contractor shall submit these reports to the KO through the GR as follows:

- (a) A preliminary report shall be made as soon as practicable after the time the incident occurs. The report may be either verbal or facsimile.
- (b) A complete written report shall be submitted within 4 days (96 hours) after occurrence of the incident. A copy of this report shall be furnished to the GR.

2.8.7. Security Danger Warning, Accident Prevention, Fire Prevention and Fire Protection Requirements. The contractor shall comply with all pertinent requirements of the U.S. Army and USAG Japan Fire Protection and Safety Regulations or Laws of Japan, whichever is more stringent, to ensure compliance by all subcontractors.

2.8.8. Accident Prevention Plan and a Job Hazard Analysis. The contractor shall not commence work at the job site until an Accident Prevention Plan and a Job Hazard Analysis are submitted for review and approved by the GR. The contractor is responsible for reviewing section 01, 05, 11 and 22 of EM 385-1-1, the U.S. Army Corps of Engineers' Safety and Health Requirements Manual,

https://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf

2.8.9. Environmental Regulations. The contractor shall comply with all U.S. Government and Japanese environmental laws (whichever are most stringent) to protect the health and safety of employees/residents and preserve the local and global environment. The contractor shall comply with the Japan Environmental Governing Standards (JEGS) and shall minimize or eliminate environmental pollution and energy/utility waste. Especially VOLUME IV and VOLUME V are much related on this work.

https://www.usfj.mil/Portals/80/Documents/2022%20JEGS.pdf?ver=mnuvzSujxiVlhHGcY_m65g%3d%3d

2.8.10. Hazardous Materials. All hazardous materials must be contained and stored in the appropriate storage containers and/or cabinets. The contractor shall immediately report spills or release of hazardous materials to the GR. The contractor shall be liable for containment and environmental clean-up of spill or release of such substance. The contractor shall comply with municipal environmental laws to protect the health and safety of employees/residents and minimize or eliminate environmental pollution. The contractor shall follow manufacturer's guidelines and professional recommendations for control of humidity, temperature, cleanliness, and materials handling. The contractor shall comply with environmental and hazardous materials storage and handling requirements and maintain current Material Safety Data Sheets (MSDS). Upon request of the GR, the contractor shall submit the MSDS to the GR.

2.8.11. Environmental and Hazardous Material Handling. The contractor shall comply with the JEGS to protect the health and safety of employees/residents and minimize or eliminate environmental pollution.

The contractor shall follow Spill Prevention and Response. In the event of a spill or release of Petroleum, Oil and Lubricants (POL) and hazardous substances occurred on USAG Japan facilities, the contractor shall immediately notify the Directorate of Emergency Services (#911 or 046-407-2911) and the GR of the incident. The contractor will be liable for containment and clean-up of the spill /release.

2.8.12. Delivery and Storage of Materials. All materials delivered and placed in storage shall be protected from the weather, humidity and temperature variations, dirt and dust, or other contaminants by the contractor.

2.8.13. Disposal of Materials. All debris and unserviceable materials generated under this contract such as industrial waste, non-recyclable materials and equipment/material not listed on hand-receipts shall be disposed of off-base by the contractor in accordance with the laws of Japan. Hand receipt items require turn-in action by the contractor when the listed items have to be replaced.

2.8.14. Temporary Work Stoppage. In the event the Garrison Commander requests a temporary shutdown of the facility, the contractor will be notified in writing by the KO. Any Government caused delays as a result of a temporary shutdown that may require an adjustment to the contract will be coordinated through the KO.

2.9. CLEANLINESS. The contractor is responsible for cleanliness of the service areas. This includes, but is not limited to, washing, sweeping, dusting and other janitorial services necessary to maintain the area in a clean and sanitary condition. The contractor shall furnish such supplies as required.

2.10. COMMERCIAL WARRANTY. The contractor shall provide the Government with their commercial warranty. The Government shall receive the same warranty service as the contractor's most favored customers. If the services fail to be performed or otherwise fail due to workmanship or materials, the contractor shall correct the affected area(s) at no additional cost to the U.S. Government. The Government reserves the right to reject any unserviceable or substandard item and to require replacement with a serviceable like item or acceptable quality item or to require full credit for the item.

2.11. CONSERVATION OF UTILITIES. The contractor shall instruct employees in utility conservation practices. The contractor shall be responsible for operating under conditions, which preclude the waste of utilities. The contractor shall comply with additional energy policies upon notification by the KO.

SECTION 2
SERVICES SUMMARY
This section is reserved

SECTION 3
APPENDICES

Appendix A:	as-built	A-1 to A-6
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